**IN THE UNITED STATES COURT OF APPEALS**
**FOR THE ARMED FORCES**

UNITED STATES
Appellee

v.

Specialist (E-4)
**JONATHAN R. PINKERTON**
United States Army
Appellant

**BRIEF ON BEHALF OF APPELLANT**

Crim. App. Dkt. No. 20240353

USCA Dkt. No. 26-0225/AR

TO THE JUDGES OF THE UNITED STATES COURT OF APPEALS FOR THE ARMED FORCES:

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Granted Issue

IN THE UNITED STATES COURT OF APPEALS
FOR THE ARMED FORCES

Whether appellant's right to confrontation was violated with the admission of JP's forensic interview.

UNITED STATES
Appellee

v.

Specialist (E-4)
**JONATHAN R. PINKERTON**
United States Army
Appellant

BRIEF ON BEHALF OF APPELLANT

Crim. App. Dkt. No. 20240353

USCA Dkt. No. 26-0225/AR

TO THE JUDGES OF THE UNITED STATES COURT OF APPEALS
FOR THE ARMED FORCES:

Statement of the Case

On July 19, 2024, a panel with enlisted representation sitting as a general court-martial convicted Appellant, Specialist Jonathan R. Pinkerton, contrary to his pleas, of five specifications of sexual abuse of a child in violation of Article 120b, Uniform Code of Military Justice.[1] (JA 7-9, 16-19). On July 20, 2024, the military judge sentenced appellant to 120 months of confinement and to be dishonorably discharged from the service.[2] (JA 10, 16-19). On August 2, 2024, the convening authority approved the UCMJ], 10 U.S.C. § 866. This Honorable Court has jurisdiction over this matter under Article 67(a)(3), UCMJ, 10 U.S.C. § 867 (a)(3).

[1] The military judge granted appellant's motion to dismiss Specification 6 of The Charge pursuant to Rule for Court-Martial 917. (JA 91).

[2] The military judge sentenced appellant as follows: The Charge, Specification 1 (JP), 84 months; The Charge, Specification 2 (JP), 60 months; The Charge, Specification 3 (AP), 36 months; The Charge, Specification 4 (JP), 36 months; The Charge, Specification 5 (JP), 36 months. The military judge ordered Specifications 1, 2, 4, and 5

Granted Issue

I. WHETHER APPELLANT'S RIGHT TO CONFRONTATION WAS VIOLATED WITH THE ADMISSION OF JP'S FORENSIC INTERVIEW.

Statement of Statutory Jurisdiction

The Army Court of Criminal Appeals (Army Court) had jurisdiction over this matter pursuant to Article 66, Uniform Code of Military Justice [hereinafter UCMJ], 10 U.S.C. § 866. This Honorable Court has jurisdiction over this matter under Article 67(a)(3), UCMJ, 10 U.S.C. § 867 (a)(3).

Statement of the Case

On July 19, 2024, a panel with enlisted representation sitting as a general court-martial convicted Appellant, Specialist Jonathan R. Pinkerton, contrary to his



1

Admitting JP's out-of-court forensic interview, in the absence of a meaningful opportunity to cross-examine her, violated Appellant's right to confrontation.

On April 20, 2026, the Army Court affirmed the findings and sentence. *United States v. Pinkerton*, ARMY 20240563, 2026 CCA LEXIS 197 (Army Ct. Crim. App. Apr. 20, 2026). (JA 3). On July 29, 2026, this Court granted Appellant's petition for grant of review of the first presented issue and ordered briefing under Rule 25. (JA 1).

## Statement of Facts

At the time of the alleged misconduct, Appellant and his wife had five children—two of whom were girls named JP and AP. (JA 132).

After moving to Fort Sill, Oklahoma, in August 2020, Appellant's family befriended Ms. Shannon Taylor—a member of their church's worship team and a chaplain's wife. (JA 131, 133). Ms. Taylor grew particularly close to JP and AP. (JA 143).

### A. JP Discloses Her Allegation of Sexual Abuse to Ms. Taylor.

On or about February 19, 2023, Ms. Taylor babysat JP and AP—then five and three years old respectively. (JA 136). While bathing the girls, Ms. Taylor noticed JP's hand "lingering . . . down in her private part area" and told her with few exceptions, "we don't really touch our parts." (JA 137-38).

JP asked, "[s]o, you mean nobody should ever ask you to touch there [sic] private parts?" (JA 139). Ms. Taylor replied that "somebody asked [her] that," to which JP said, "[y]es." (JA 138). JP said it was "[d]addy" that touched

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of The Charge to be served concurrently and consecutive to Specification 3 of The Charge. (JA 10).

her.[3] (JA 140). During this conversation in the bathtub, AP sat silently next to JP (JA 140). After putting AP to bed, Ms. Taylor used her cell phone to record the conversation, had JP repeat her earlier statement, (JA 140, 366). JP said Appellant asked her if she would touch his genitals and if she would touch her own genitals, and that he then touched her genitals. (JA 366).

Ms. Taylor intended to give the recording to Appellant's wife. (JA 141). Instead, as a mandatory reporter,[4] Ms. Taylor delivered the recording to CID. (JA 101). Special Agent (SA) Richard Caldwell video recorded Ms. Taylor's recording and arranged for a child forensic interviewer to meet with JP.[5] (JA 142, 157-58).

[3] At trial, the defense objected to JP's response as hearsay. (JA 138). The government argued the statement was being offered for its effect on Ms. Taylor.

[4] Although the record is unclear as to why Ms. Taylor was a mandatory reporter, all sides recognized her as such.

[5] A forensic interviewer also met with AP. At trial, AP, now five years old, testified that she never told anyone that she was inappropriately touched by someone and denied being asked about it previously. (JA 173). Appellant did not cross-examine AP. (JA 174). The government admitted AP's forensic interview; however, the remainder of the brief will only address JP as she is the only alleged victim pertaining to the granted issue.

[6] There was no objection to the recording of Ms. Taylor's video of JP taken by SA Caldwell and it was admitted as Pros. Ex. 22.

### B. A Forensic Interviewer Meets with JP.

On February 23, 2023, a forensic interviewer met with JP while SA Caldwell observed in an adjacent room. (JA 158). JP recounted and expanded upon her initial statement to Ms. Taylor. (JA 367).

### C. The Government Sought to Admit JP's Forensic Interview as Residual Hearsay.

Fearing JP might forget the details of her allegations when called to testify, the government sought to pre-admit her prior statements pursuant to Mil. R. Evid. 807. (JA 246). The military judge issued a preliminary ruling finding the government had not satisfied Mil. R. Evid. 807(a)(2) as it was speculative that JP's memory faded, that she would refuse to testify, or that she would fail to appear for trial. (JA 277).

On the eve of trial, it seemed like JP would not appear. Since JP's interview, Appellant's wife declined the government's efforts to interview her daughter and indicated she would refuse to bring JP to Appellant's court-martial. (JA 234). Ultimately, the prospect of a warrant of attachment motivated Appellant's wife to bring JP to trial. (JA 102-28).

### D. On Direct Examination, JP Immediately Stated She Did Not Want to Testify.

Several hours later, the government called JP, now seven years old, to testify. (JA 129-30).
160-63). Before taking the oath and in front of the panel, JP stated "I don't want to testify." (JA 162). The military judge told JP, "I understand, but it's a requirement for

**E. The Military Judge Admitted JP's Forensic Interview as Residual Hearsay.**

After JP briefly testified, the government sought to admit Pros. Ex. 22 and 23—JP's previously recorded statement—under Mil. R. Evid. 807. (JA 366-67). Appellant objected under the Confrontation Clause and argued the government failed to satisfy the requirements for residual hearsay. (JA 176).

Regarding the Confrontation Clause, the military judge found JP's statement was testimonial. (JA 314). But she found Appellant's confrontation rights were satisfied when she took the stand, thus providing Appellant with an opportunity for cross-examination. (JA 223). Lastly, the military judge found the government met Mil. R. Evid. 807's requirements for the previously recorded statement. (JA 214, 223).

**E. The Military Judge Admitted JP's Forensic Interview as Residual Hearsay.**

Although she did not make an explicit finding regarding JP's unavailability, the military judge did find the government was unable to elicit details of the alleged offenses from JP and that she "refused to provide any further testimony on the alleged offenses." (JA 212-15). She found that JP testified that "she didn't want to testify . . . ." (JA 214).

## Summary of Argument

Appellant was denied due process when the military judge committed reversible constitutional error by admitting JP's out-of-court forensic interview during his court-martial. The Sixth Amendment's Confrontation Clause guarantees a criminal defendant the right to confront the witnesses against him, securing a fundamental, procedural guarantee of a meaningful, face-to-face opportunity for cross-examination.

Physical presence on the stand is a prerequisite for confrontation, but it is not a constitutionally sufficient shield for the government if the witness has pre-emptively and categorically refused to discuss the abuse allegations like JP did here. A child witness' refusal to testify due to extreme fright or being overcome with emotion from the overwhelming experience of testifying is the functional equivalent of physical absence – rendering her physical presence on the stand a hollow gesture. JP's explicit refusal to discuss the allegations rendered the "opportunity" for a meaningful cross-examination a legal fiction. Furthermore, because the trial counsel's direct examination lacked substance related to JP's specifications, any defense cross-examination regarding the allegations would have been beyond the scope of direct under M.R.E. 611(b) and unconstitutionally shifted the burden of production to the defense.

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[6] The conviction for Specification 3 of The Charge involves AP.

Ultimately, the military judge admitted Pros. Ex. 22 and 23. (JA 220, 223).

Appellant was convicted of Specifications 1, 2, 4, and 5 of The Charge relating to JP.[7]

## A. Standard of Review and Law

Whether admitted evidence violates the Confrontation Clause is a question this Court reviews de novo. *United States v. Blazier*, 68 M.J. 439, 442 (C.A.A.F. 2010). If it finds such a violation, this Court cannot affirm the conviction unless the evidence's admission was harmless beyond a reasonable doubt. *United States v. Rankin*, 64 M.J. 348, 353 (C.A.A.F. 2007).

The Confrontation Clause provides that "[i]n all criminal prosecutions, the accused shall enjoy the right . . . to be confronted with the witnesses against him." *Giles v. California*, 554 U.S. 353, 357–58 (2008). Where testimonial evidence is at issue, the Sixth Amendment "demands what the common law required: unavailability and a prior opportunity for cross-examination." *Crawford v. Washington*, 541 U.S. 36, 68 (2004). "The Confrontation Clause is not violated by admitting a declarant's out-of-court statements, as long as the declarant is testifying as a witness and subject to . . . cross-examination." *California v. Green*, 399 U.S. 149, 158 (1970). The Court has recognized that a defendant does not have an opportunity to cross-examine a witness who refuses to testify. *Douglas v. Alabama*, 380 U.S. 415 (1965). While an oath or affirmation to testify truthfully is a prerequisite to testify, the

[7] The conviction for Specification 3 of The Charge involves AP.





Argument

I. Whether Appellant's right to confrontation was violated with the admission of JP's forensic interview.

On April 20, 2026, the Army Court summarily affirmed Appellant's convictions. (JA 3).

Specified Issue

I. WHETHER APPELLANT'S RIGHT TO CONFRONTATION WAS VIOLATED WITH THE ADMISSION OF JP'S FORENSIC INTERVIEW.

Standard of Review and Law

Whether admitted evidence violates the Confrontation Clause is a question this Court reviews de novo. *United States v. Blazier*, 68 M.J. 439, 442 (C.A.A.F. 2010). If it finds such a violation, this Court cannot affirm the conviction unless the evidence's admission was harmless beyond a reasonable doubt. *United States v. Rankin*, 64 M.J. 348, 353 (C.A.A.F. 2007).

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### 1. Path 1: JP Refused to Testify Before Taking the Oath.

The first pathway of constitutional error occurred when JP entered the courtroom and explicitly refused to testify before taking the oath. (JA 162). At that point, she was functionally unavailable, and admitting her forensic interview was a direct violation of Appellant's confrontation rights.

The baseline threshold of confrontation is a functionally interactive, communicative exchange, not merely a display of physical proximity. *Owens* and *Douglas* clearly state that a defendant is denied an opportunity for cross-examination with a witness that refuses to testify, and that such a witness is not truly subject to cross-examination when they do not willingly respond to questions. *Douglas*, 380 U.S. at 419; *Owens*, 484 U.S. at 561-62. This principle extends to a case, such as this, where a child witness, JP, was unable and unwilling to testify out of fright or due to being overcome with emotion from the prospective of testifying. JP's mere physical presence on the stand was an empty gesture and insufficient to satisfy Appellant's constitutional confrontation rights.

At the time seven-year-old JP was called to the stand, the record was entirely devoid of any substantive evidence supporting the allegations. The government's brief examination of her failed to bridge this evidentiary gap. Although JP was physically produced in the courtroom, her outright refusal to testify resulted in the government eliciting only scant biographical details before abruptly concluding its

*McGrath*, this testimony provided an opportunity for meaningful cross-examination, but counsel in *Nyhammer* made a strategic decision to forgo discussing the allegations. *Nyhammer*, 197 N.J. at 394–95. Meanwhile, JP's testimony created an express substantive bar, not selective reticence as displayed in *Nyhammer* and *McGrath*. This utter silence deprived counsel of a meaningful opportunity to cross-examine JP, which resulted in a due process violation. Therefore, the admission of her forensic interview violated Appellant's right to confrontation.

## Conclusion

As JP refused to testify and did not willingly respond to any questions regarding her allegations against Appellant, he did not have an opportunity to meaningfully cross-examine her. Therefore, Appellant's right to confrontation was violated with the admission of JP's out-of-court statements. Furthermore, this Court cannot affirm Appellant's convictions regarding her allegations, as the government cannot prove these statements were harmless beyond a reasonable doubt since they were the only evidence of JP's purported abuse. Therefore, the admission of JP's forensic interview prejudiced Appellant and each requires a similar remedy: this Court setting aside and dismissing all Charges and their Specifications.

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Dated: September 9, 2026

## Certificate of Compliance with Rule 24(b)
## Certificate of Compliance with Rules 24(c) and 37

This brief complies with the type-volume limitation of Rule 24(b) because: This brief contains 1833 words. This brief complies with the typeface and type style requirements of Rule 37.

1. This Brief on Behalf of Appellant complies with the type-volume limitation of Rule 24(c) because it contains 4,155 words.

2. This Brief on Behalf of Appellant complies with the typeface and type style requirements of Rule 37 because it has been prepared in Times New Roman font, using 14-point type with one-inch margins.

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**Certificate of Filing and Service**

**CERTIFICATE OF FILING AND SERVICE**

I certify that a copy of the foregoing was electronically filed with the Court and electronically served on the Government Appellate Division on September 9, 2026.

I certify that a copy of the foregoing in the case of *United States v. Pinkerton*, Crim. App. Dkt. No. 20240353, USCA Dkt. No.26-0225 AR was electronically filed with the Court and Government Appellate Division on September 9, 2026.

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